

بِسْمِ اللَّهِ الرَّحْمَنِ الرَّحِيمِ

Darul Uloom Wal Funoon

Masā'il al-Ḥajj

Conditions of Obligatory Hajj — Class Notes

Compiled class notes · Ḥanafī fiqh of Hajj

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These notes are prepared for students of **Darul Uloom Wal Funoon** following the Masā'il al-Ḥajj series with **Mufti Umar Aejaaz**. They are study material, not a formal fatwa unless endorsed by the institution.

Disclaimer. Content reflects live class instruction in the Ḥanafī madhhab. Consult qualified scholars for legal rulings.

Reference text. The principal Hanafi reference for this series is **Badā'i' al-Ṣanā'i' fī Tartīb al-Sharā'i'** (Volume 3 (al-I'tikāf — al-Nikāḥ)), by Imam 'Alā' al-Dīn Abū Bakr ibn Mas'ūd al-Kāsānī (d. 587 AH).

Ongoing edition. New sessions will be added as classes continue.

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Muqaddimah — Introduction

How to use this volume

These notes form an **ongoing compendium** of the Masā'il al-Ḥajj lessons at **Darul Uloom Wal Funoon**, taught by **Mufti Umar Aejaaz**, compiled by **Arif Shaikh**.

The series explains **when Hajj becomes farḍ** upon a person: conditions of taklīf, then **istiṭā'ah** (capability)—provisions, transport, safety of travel, and rules for women.

How to use this book

1. Read each **session** in order; later lessons build on earlier ones.
2. Arabic terms appear as taught; difficult words are explained in brackets in the session notes.
3. Verify Quranic and hadith references in standard editions.
4. Download the latest PDF from the repository as new classes are added.

Principal reference

بَدَائِعُ الصَّنَائِعِ فِي تَرْتِيبِ الشَّرَائِعِ
Volume 3 (al-I'tikāf — al-Nikāḥ)

الإمام علاء الدين أبو بكر بن مسعود الكاساني
Imam 'Alā' al-Dīn Abū Bakr ibn Mas'ūd al-Kāsānī (d. 587 AH)

Badā'i' al-Ṣanā'i' fī Tartīb al-Sharā'i' (Volume 3 (al-I'tikāf — al-Nikāḥ)) by Imam 'Alā' al-Dīn Abū Bakr ibn Mas'ūd al-Kāsānī (d. 587 AH) is the classical Hanafi reference used alongside oral teaching. This student book **documents the lessons**; it does not reproduce the full text of that work.

Method

- **Madhhab:** Ḥanafī, as taught by Mufti Umar Aejaaz.
- **Format:** Opinions, evidence, cases, and Q&A from class.
- **Preferred view:** Marked when the teacher gives the mashhūr Hanafi position.

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List of Sessions

Editions will grow as classes continue

№	Session	Date
1	Conditions that make Hajj obligatory	11 May 2026
2	Physical capability — the blind person	12 May 2026
3	Zād and Rāhilah — expenses & transport	13 May 2026
4	Amn al-ṭarīq & women — maḥram rules	18 May 2026
5	‘Iddah travel restrictions & Hajj Badal	19 May 2026

Masail e Hajj — Class 1 Summary

DATE May 11, 2026

TOPIC Conditions that make Hajj obligatory

Overview

This is a Fiqh (Islamic law) class discussing the conditions required for Hajj to become obligatory (Farz) upon a person. The teacher explains each condition with Quranic evidence, Hadith, and logical reasoning.

The Four Conditions

1. Bulugh (Reaching Puberty)

- Hajj is not obligatory on a child who has not yet reached puberty.
- If a child performs Hajj, it counts as Nafl (optional) — not as the obligatory Hajj.
- After reaching puberty, they must perform Hajj again as their first obligatory one.
- This is a commonly asked question, and the Hadith confirms it clearly.

2. Aql (Sound Mind)

- Hajj is not obligatory on a Majnun (a person who is mentally ill or has lost their mind).
- Sharia (Islamic law) does not address or obligate such a person.
- If they recover their mind and then perform Hajj with a fresh intention, that would count as the obligatory Hajj.

3. Islam

- Hajj is only obligatory on a Muslim.
- A non-Muslim's Hajj — even if performed many times — does not count.
- After accepting Islam, they must perform Hajj fresh as a Muslim.

Scholarly Debate on This Point

There is a difference of opinion between Hanafi scholars and Imam Shafi'i on whether non-Muslims are accountable (mukallaf) for Islamic acts of worship:

	Hanafi View	Imam Shafi'i's View
In this world	Non-Muslims are not obligated to perform Islamic acts	Same — they cannot perform them
In the Hereafter	They will not be questioned about Salah, Hajj, etc. — they go directly to punishment for disbelief	They will be questioned and punished for not performing these acts

Imam Shafi'i's evidence: The Quranic verse says “upon the people” — general, not “upon Muslims only.”

Hanafi response: The general wording becomes specific when read in context — the next part of the verse addresses non-believers separately, meaning the first part was specifically for Muslims. Also, logically, how can you make something obligatory on someone who cannot perform it?

4. Freedom (Not Being a Slave)

- Hajj is not obligatory on a slave (abd).

- Even if a slave performs Hajj 10 times, none of it counts as the obligatory Hajj.
- After gaining freedom, they must perform Hajj again from scratch.

Why? — The Two Required Capabilities

For Hajj to be obligatory, a person must have both:

1. **Financial capability** — ability to own money, food, and means of travel.
2. **Physical capability** — control over their own body and self.

A slave has neither — their body is controlled by their master, and they cannot own anything. So they are missing both conditions entirely.

Important Comparison: Slave vs. Poor Person (Faqir)

Situation	Slave	Poor Person (Faqir)
Hajj obligatory at start?	No	No
If they somehow perform Hajj, does it count?	No — still does not count	Yes — it counts as obligatory Hajj
Why the difference?	Missing both capabilities (financial + physical) even with master's permission	Only missing financial capability at start. When he arranges his travel and food and begins the journey, he fulfills the financial capability during the Hajj itself

Key point about the poor person: When he starts his journey and actually arranges food and travel — even if others helped him — he has now proven financial capability. So his Hajj turns into the obligatory one, and he does not need to repeat it even if he becomes wealthy later.

Exception: Why Does Salah (Prayer) Work Differently for a Slave?

A slave's Salah (prayer) counts as obligatory even though his Hajj does not. Here is the reasoning:

- A slave's physical services belong to his master — except for the time needed for obligatory prayers. Sharia gave this concession specifically for prayer.
- Prayer is short — it causes no significant harm or financial loss to the master.
- Hajj and Jihad involve long absence and financial expense — significant harm to the master.
- If Sharia counted a slave's Hajj as obligatory, slaves would rush to perform it and pressure their masters for permission — causing harm to masters both physically and financially.
- So Sharia protected the master's rights by not counting Hajj or Jihad as obligatory for a slave.

Also, counting Jumu'ah (Friday prayer) as valid for a slave actually benefits the master — because if it did not count, the slave would still need to pray Zuhr separately, taking even more time. So it is more practical and fair to count it.

Follow-Up Cases: What If a Condition Is Gained Mid-Hajj?

Child Who Reaches Puberty During Hajj

- **Hanafi view:** If he started with intention of Nafl (optional), it stays Nafl — even if he reaches puberty midway. He must start fresh with new intention as an adult for it to count as obligatory.
- **Imam Shafi'i's view:** If he reaches puberty before the key act of Wuquf (standing at Arafah), it can count as obligatory — because in his view, obligatory Hajj can be fulfilled even with a Nafl intention.

For It to Count as Obligatory (Hanafi view)

The person must:

1. Make a new intention (Niyyat) after gaining the condition (puberty, sanity, Islam, or freedom).
2. Recite Talbiyah freshly.
3. Perform the key pillars of Hajj — especially Wuquf at Arafah (standing at Arafah) and Tawaf al-Ziyarah (the obligatory circling of the Kaaba) — **after** gaining the condition.

Same rule applies to:

- A Majnun who regains sanity mid-Hajj.
- A Kafir who accepts Islam mid-Hajj.
- A Slave who is freed mid-Hajj (this case will be covered in the next class).

Q&A at the End: Why Is Ramadan Fasting Different?

Student's question: In Ramadan, even if someone starts fasting with a Nafl intention, it still counts as obligatory. Why doesn't the same apply to Hajj?

Teacher's answer:

- In Ramadan fasting, the person who is ill or traveling is already eligible for the obligation — they just have a temporary concession (choice) given to them by Sharia. They are fully capable of fasting being obligatory on them.
- A child or slave is not in that category at all — they are simply not in a state where anything can be made obligatory upon them.
- So whatever a child performs — it can only ever be Nafl, not obligatory — because the very foundation of eligibility is missing.
- But a sick or traveling adult is still fundamentally eligible — the concession is just a temporary allowance, not a removal of eligibility.

Closing

The teacher wraps up by saying:

- Four conditions covered: Puberty, Sound Mind, Islam, Freedom.
- More conditions are coming in future classes.
- Next class will continue with the case of the slave who is freed mid-Hajj.
- Next session will be at 7:15 inshallah.

Masail e Hajj — Class 2 Summary

DATE May 12, 2026

TOPIC Physical capability (Istita'at) for Hajj — the case of a blind person

Background

The fifth condition for Hajj to be obligatory is **physical capability**. The class examined the specific case of a **blind person** and whether Hajj is obligatory upon them.

Two scholarly opinions

Opinion 1 — Imam Abu Hanifa

Hajj is **not obligatory** upon a blind person to perform himself. His reasoning:

- A blind person cannot independently perform the actions of Hajj — he cannot travel, mount or dismount, or navigate without assistance.
- Any capability he has is **dependent on another person**, and that other person is not under his control.
- In Sharia, capability achieved through someone not in one's control **does not count as true capability**.
- Example given: an elderly person too weak to sit firmly — even if someone helps him, Hajj is still not obligatory on him.
- Obligating Hajj in such a case would create **haraj (undue hardship)**, which Islam does not impose.

Opinion 2 — The Sahibain (Imam Abu Yusuf and Imam Muhammad) — preferred opinion

Hajj is **obligatory** upon a blind person **if he has a guide**. Their reasoning:

- A blind person is physically fit — he can perform all actions of Hajj: Tawaf, Rami (stoning), and all other rites.
- All he lacks is **directional guidance**, not physical ability.
- If a guide is available, he has no valid excuse.
- Therefore, if a guide is present, Hajj is obligatory upon him personally.

The Hadith argument (Zaad and Rahila)

The Sahibain argued that the Prophet ﷺ defined Istita'at (capability) as having **Zaad** (food and provision) and **Rahila** (means of travel) — and a blind person can have both.

Imam Abu Hanifa's response: The Prophet ﷺ mentioned Zaad and Rahila as **examples**, not as an exhaustive definition of capability. Evidence:

- A person blocked by a sea with no ship available is not obligated for Hajj, even if he has Zaad and Rahila.
- A person restricted by a government or enemy is likewise not obligated.
- This proves capability has additional conditions beyond just Zaad and Rahila.

Two cases of blindness — detailed ruling

Case 1: Blind before Hajj became obligatory on him

- **If a guide is available** → Hajj is obligatory; he must perform it himself.
- **If no guide is available** → Hajj is not obligatory; he does not need to send someone on his behalf.

Case 2: Became blind after Hajj was already obligatory on him (i.e. he delayed Hajj while healthy)

- **If capable of traveling with a guide** → He must perform it himself.
- **If not capable of traveling** → He must arrange for someone to perform **Hajj-e-Badal** (proxy Hajj) from his wealth, or make a **wasiyyah** (bequest) that it be done after his death.

Question raised by a student

Q: In Zakat, if a person's wealth is lost before paying, the obligation is lifted. Why doesn't the same apply to Hajj — i.e. why does Hajj remain obligatory even after blindness occurs?

A (brief): According to the Sahibain, blindness is not considered a major disability that makes a person incapable. It is a minor barrier. Therefore, since the obligation was already established while he was healthy, it remains — blindness alone does not remove it.

Next class

Wednesday (tomorrow) at 9:30 PM

Topic: the conditions related to **arranging provisions and means of travel** (Zaad and Rahila) for Hajj.

Ongoing schedule agreed:

- Monday and Wednesday → **9:30 PM**
- Tuesday, Thursday, and Friday → **7:15 PM**

Masail e Hajj — Class 3 Summary

DATE May 13, 2026

TOPIC Conditions of Hajj — Zad & Rahila (Travel Expenses & Transport)

TEACHER Mufti Umar Aejaz

Introduction

This lesson discusses one of the key conditions (شروط) that make Hajj obligatory (فرض) upon a person — specifically the condition of **Zad** (زاد) and **Rahila** (راحلة).

Important note: This condition applies only to someone who lives away from Makkah. A Makki (person residing in Makkah) can walk to the Haram easily, so the transport condition does not apply to him in the same way — similar to how someone walks to the Masjid for Jumu'ah.

Two Key Terms

- **Zad** (زاد) — Travel provisions, meaning food, stay, and all expenses needed during the journey.
- **Rahila** (راحلة) — The means of transport, whether an animal (in old times), a vehicle, or a flight ticket today.

Central Question: Is Ownership Required?

Before getting into the opinions of the scholars, two concepts must be understood:

- **Milk** (ملك) — Full ownership. You own something completely and can use it, sell it, or give it away however you like.
- **Ibaha** (إباحة) — Permission to use. Someone else owns it but permits you to use it. You have no independent authority over it.

Opinions of the Four Imams

Imam Abu Hanifa and the Hanafi Majority

Both Zad and Rahila must be in your **full ownership (Milk)**. If someone merely gives you permission (Ibaha) to use their food and transport, Hajj does **NOT** become obligatory upon you. The argument is that Ibaha can be withdrawn at any moment — you do not have guaranteed, unconditional access — so full Istita'at (استطاعة — capability) is not achieved through it.

Imam Shafi'i (رحمه الله)

Both Zad and Rahila are required, **BUT** Ibaha (permission to use) is also sufficient. If someone from your close family — like your father — arranges and permits you to use his food and transport as his responsibility, Hajj becomes obligatory upon you. However, if a complete stranger (Ajnabi) does this, Imam Shafi'i has two opinions — one says Hajj becomes obligatory, another says it does not.

He also used the example of **Tayammum** (تيمم — dry ablution using dust when water is unavailable): if someone permits you to use his water, you are NOT eligible for Tayammum because water is accessible to you. Similarly, if someone permits you to use his Zad and Rahila, you are capable — so Hajj is obligatory.

The Hanafi counter-argument: The rule of Tayammum is different. The Quran says you may do Tayammum when you cannot find water — that means you have no access at all, neither by ownership nor by permission. So that example does not apply here. For Hajj, the Quran demands full and unconditional capability (Istita'at), which Ibaha cannot guarantee since permission can be taken back at any time.

Imam Malik (رحمه الله)

Rahila (means of transport) is **NOT** a condition at all. If a person is healthy and physically capable of walking the entire journey, Hajj is obligatory upon him even if he has no vehicle, ticket, or animal.

His argument is from the Quran:

وَلِلّٰهِ عَلَى النَّاسِ حِجُّ الْبَيْتِ مَنِ اسْتَطَاعَ اِلَيْهِ سَبِيْلًا

“And upon Allah is the duty of Hajj for the people — for whoever is able to find a way to it.” (Aal Imran: 97)

He says this ayah does not specifically mention a vehicle. A healthy person who can walk has found a way — so Hajj is upon him.

The Hanafi response: The great scholars of tafsir (Quranic interpretation) have explained this very ayah to include two specific requirements — Zad (provisions) and Rahila (transport). Walking the entire journey is not a realistic or easy undertaking, so it cannot be used as the measure of capability for a person living far from Makkah.

What Happens if Someone Gifts You a Hajj Ticket?

If someone gifts (هدية — Hadiya, a gift where ownership transfers) you a flight ticket and arranges your food — ownership is now yours — so Istita'at could be achieved. But is it obligatory upon you to accept this gift?

- **According to the Hanafis:** No. Accepting a gift is not compulsory. You are not sinful for declining.
- **Imam Shafi'i** has two opinions on this as well.

How Much Does One Need? — The Criteria of Zad & Rahila

The financial capability required for Hajj to become obligatory means the following must all be in place simultaneously:

1. **Enough money** to cover your travel to Makkah and back using some means of transport (not on foot if you are far).
2. **A moderate (average, not luxurious) stay and food package** during the journey — no extravagance required, but comfort must be manageable.

3. **All of the above must be over and above your essential needs.** Things already in your use are NOT counted — these include:
- The house you live in
 - Your servant (Khadim — خادم)
 - Your horse or personal vehicle
 - Your weapons (in the classical context)
 - Your clothing and furniture
 - All other daily-use items
4. **You must also arrange the expenses (Nafaqa — نفقة)** of your dependents — family, servants — for the entire period you will be away for Hajj. This includes both food and clothing.
5. **Any debts (Dain — دين) you owe must be subtracted first.** Example given: if you have 10 lakh rupees but owe 8 lakh in debts, only 2 lakh remains — if that is insufficient for Hajj expenses, Hajj is not yet obligatory upon you.
-

How Long Must Family Expenses Be Arranged?

Some older scholarly opinions say one month's expenses must remain in your account even after returning from Hajj. Others say one full year.

The teacher clarifies: these older opinions were based on the reality of that era — Hajj journeys sometimes took a full year or more by animal travel. Today the journey takes hours, and a stay of one to four weeks is typical. So the rule is simply: arrange your family's expenses for however long you will be away. If it is 10 days, then 10 days. If one month, then one month.

Special Cases Discussed

Case 1 — Shared Transport

If a Rahila is shared between two people on a rotation — one rides while the other walks, then they switch — this is **NOT** sufficient. The Rahila must be available to you for the entire journey without interruption.

Case 2 — Extra House Not in Use

If a person owns an extra house he does not live in and does not rent out, and its value is enough to fund Hajj, then according to **Ibn Shuja'** (a Hanafi scholar), it **IS** counted. He must sell it and perform Hajj. He also cannot take Zakat in this situation since the value of this property reaches Nisab (نصاب — minimum threshold of wealth).

Case 3 — Expensive House Being Used

If a person lives in a house worth 50 lakh rupees, and a simpler house is available for 30 lakh — could he sell, downgrade, and use the leftover money for Hajj? The answer is **No**. The house he currently lives in is an essential need and is not counted. He is not required to downgrade his home to fund Hajj. However, if he chooses to do so voluntarily, that is a good deed (Nafal — نافلة — voluntary good act) for him.

Case 4 — Person with Savings but No House or Servant

Abu Yusuf (رحمه الله), the student of Imam Abu Hanifa, says: if a person has money in hand sufficient for Hajj but has no house (living on rent) and no servant — and he can arrange family

expenses for the Hajj period — then Hajj is **immediately obligatory**. He should NOT delay it by first buying a house or hiring a servant. He can continue living on rent as he already is. Spending that money on a house first — instead of Hajj — would make him sinful, because Hajj was already obligatory upon him at that point.

Case 5 — Food for the Family

It does not mean the family must be left with a full year's food stored at home. It means enough provision must be arranged to cover the family's needs for the period of absence. Any additional stockpiling beyond that is unnecessary.

Conclusion of This Section

The obligatory nature of Hajj requires:

- Full ownership of Zad and Rahila (Hanafi position)
- Both must be beyond your essential needs and beyond your debts
- Family expenses for the duration of the trip must be covered
- The Rahila must be available throughout the entire journey, not on a rotation

Next lesson: The next condition for Hajj — that the journey must be safe and secure.

Masail e Hajj — Class 4 Summary

DATE May 18, 2026

TOPIC Safety of travel (Amn al-Tariq), women's conditions for Hajj, and mahram rules

TEACHER Mufti Umar Aejaz

Introduction

This class continues the conditions of **Istita'at** (استطاعة) [capability] that make Hajj **Farz** (فرض) [obligatory]. Class 3 covered **Zad** (زاد) [travel provisions] and **Rahila** (راحلة) [means of transport]. Today's focus:

1. **Amn al-Tariq** (أمن الطريق) — safety and security of the journey.
2. **Conditions specific to women** — especially **mahram** (محرم) and related rules.

General conditions (Zad, Rahila, physical capability, etc.) apply to **men and women both**. A few extra conditions apply **only to women**.

Part 1 — Amn al-Tariq (Safety of Travel)

Central question

If a person has money and transport but **travel is not safe** for any reason, is Hajj still obligatory?

Opinion 1 — Not preferred: safety is a condition for *performance*, not for *obligation*

- Hajj becomes Farz on him even without safe travel.
- He is **not obliged to actually go** until the road becomes safe.
- **Practical result:** If he never got safety in his life and is now dying, **Hajj-e-Badal** (حج البدل) [proxy Hajj] and **wasiyyah** (وصية) [bequest] may be required — because Hajj was already obligatory on him, only performance was delayed.

Their evidence — Hadith of Zad and Rahila

When the Prophet ﷺ was asked what capability (*istita'ah*) for Hajj means, he mentioned only **food/provisions** and a **riding animal** — no mention of safety:

عَنْ أَبِي هُرَيْرَةَ رَضِيَ اللَّهُ عَنْهُ قَالَ: قَالَ رَسُولُ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ: «مَنْ مَلَكَ زَادًا يُبْلَغُهُ إِلَى كَعْبَةِ اللَّهِ وَسَبِيلًا يَسِيرُ فِيهِ إِلَى بَيْتِ اللَّهِ فَلَيْسَ لَهُ أَنْ يَتْرَكَ حَجَّ بَيْتِ اللَّهِ»

“Whoever possesses provision that reaches him to the Ka‘bah of Allah and a path by which he may travel to the House of Allah — he must not leave performing Hajj of the House of Allah.”

Ref: Sahih Muslim, 1331; Sahih al-Bukhari, 1521 (narration of Abu Hurayrah رضى الله عنه).

Their argument: Since the hadith does not mention **amn** (أمن) [safety], safety is **not** a condition for obligation — only for going.

Opinion 2 – Preferred (Hanafi): safety is a condition for *obligation* itself

- **Without safety, Hajj is not Farz at all** – not merely delayed.
- If he dies without ever having safe travel, **Hajj-e-Badal is not Wajib** (واجب) [obligatory] on him before death, because Hajj was never established as Farz on him.

Quranic basis

Allah tied Hajj to true capability:

وَلِلّٰهِ عَلَى النَّاسِ حِجُّ الْبَيْتِ مَنِ اسْتَطَاعَ اِلَيْهِ سَبِيْلًا

“Hajj to the House is a duty owed to Allah by people – for whoever is able to find a way to it.”

Ref: Surah Aal Imran, 3:97.

Logic: A person **cannot** be *mustati* (مستطيع) [truly capable] if the road is unsafe – just as he cannot be capable without Zad and Rahila. **Istita’at** requires that travel be realistically possible, which includes **security**.

Answer to the hadith (Zad and Rahila only)

The hadith mentions Zad and Rahila as **examples (tamthil / jumla ‘ala al-ghalib)** of what people normally need – not as an **exhaustive list** of every part of capability.

Proof the list is not limited to two things:

Situation	Has Zad + Rahila?	Hajj Farz?
Blocked by sea, no ship	Yes	No
Blocked by enemy / government	Yes	No
Unsafe road	Yes	No (preferred view)

Similarly, the same hadith does **not** mention **physical fitness (quwwah badaniyyah)** – yet everyone agrees a paralysed person without help is not obligated. The hadith describes what is **usually** enough, not every condition.

Key principle: The real **shart** (شرط) [condition] is **full Istita’at**. Whatever is needed to make travel truly possible – Zad, Rahila, **and** Amn – falls under that.

Comparison: Zad, Rahila, and Amn

	Zad	Rahila	Amn al-Tariq
Meaning	Provisions for journey	Transport	Safety of the way
Without it, can he travel?	No	No	No
Listed in the hadith?	Yes (as example)	Yes (as example)	No – but same rule
Role in obligation	Part of Istita'at	Part of Istita'at	Part of Istita'at

Case – Rich, capable, but never had safe travel; now dying

View	Hajj ever Farz on him?	Hajj-e-Badal before death?
Preferred (Hanafi)	No	Not Wajib
Other opinion	Yes (obligation without performance)	Wajib (wasiyyah / Badal)

Part 2 – Conditions Specific to Women

Two extra conditions (Hanafi study); the second will be completed next class:

1. **Mahram** (محرم) – availability, readiness, and **financial maintenance (nafaqa / zad)** of the mahram.
2. **Not in Hayd / 'Iddah** (حیض / عدة) [menstruation or waiting period] – when travel for Hajj is not allowed; **next class insha'Allah**.

Part 2A – Mahram: Hanafi vs Imam Shafi'i

Hanafi position (preferred in this class)

- **Without a mahram (or husband), Hajj is not Farz** on the woman.
- She **cannot** travel for Hajj **alone**, even if she is wealthy.
- Going without mahram is **not valid** as the obligatory Hajj she owes.

Evidence – Hadith specific to Hajj

لَا يَحِلُّ لِمَرْأَةٍ تُؤْمِنُ بِاللَّهِ وَالْيَوْمِ الْآخِرِ أَنْ تَحُجَّ إِلَّا مَعَ مَحْرَمٍ

“It is not lawful for a woman who believes in Allah and the Last Day to perform Hajj except with a mahram.”

Ref: Sunan al-Tirmidhi, 1174 (hasan); Ahmad, 1/393 — as cited in fiqh works; wording as taught in class.

Meaning: If Hajj without mahram is **haram / not permitted**, it cannot be **obligated** upon her in that state — you cannot command what Sharia forbids.

Evidence — General travel hadith

لَا يَحِلُّ لِمَرْأَةٍ تُؤْمِنُ بِاللَّهِ وَالْيَوْمِ الْآخِرِ أَنْ تُسَافِرَ مَسِيرَةَ يَوْمٍ وَلَيْلَةٍ إِلَّا مَعَ ذِي مَحْرَمٍ

“It is not lawful for a woman who believes in Allah and the Last Day to travel a distance of one day and one night except with a mahram.”

Ref: Sahih al-Bukhari, 1088; Sahih Muslim, 1341 (hadith of Ibn ‘Abbas رضي الله عنه).

Distance: In early times this was estimated as about **48 miles (77 km)** — **Safar** (سفر) [long journey] in Sharia terms. Hajj from outside Makkah is always this type of travel.

Two reasons for mahram (as taught)

1. **Protection (hifz / amn)** — from non-mahram men on a long journey; women need a protector.
2. **Physical support** — travel is hard; a mahram helps her during the journey.

Both apply to **young and old** women — an elderly woman may need support **more**, and protection is needed at every age.

‘Aql (عقل) / logic used in class: Women are described in classical discourse as needing protection on long travel like something exposed unless covered — **mahram** is that protection in Sharia.

Imam Shafi‘i’s position (mentioned for contrast — not Hanafi fatwa)

- If **trustworthy, reliable Muslim women** are with her in the group, Hajj **can be Farz** even without mahram.
- He uses the general ayah of Hajj on “whoever is capable” — no mention of mahram in the verse.

Hanafi answer to the ayah

(Aal Imran: 97) وَلِلَّهِ عَلَى النَّاسِ حِجُّ الْبَيْتِ مَنِ اسْتَطَاعَ إِلَيْهِ سَبِيلًا

The ayah speaks about one who is truly **mustati‘**. A woman **without mahram** is **not considered capable in Sharia** for this type of journey — so she does not fall under this general wording. Capability for her **includes** mahram.

Hanafi answer to “other women will protect her”

- Other women are also **not safe alone** on long travel in the same way.
- A larger group of women does **not** remove the need for mahram — harm and **fitnah** (فتنة) [temptation / moral risk] can increase, not decrease.

- **Khalwah** (خلوة) [seclusion] with a non-mahram man is haram **even if other women are present** – so protection by women alone is insufficient.

Part 2B — Mahram Must Be Ready and Financially Covered

Hajj is Farz on the woman only when **all** of the following are already in place:

1. **Mahram (or husband) exists** and is **willing to travel** with her.
2. She has enough wealth for **her own** Zad, Rahila, and journey costs.
3. She has enough wealth for the **mahram's** journey costs as well — **nafaqa** (نفقة) [maintenance] of the mahram for that trip.

Important: It is **her duty** to afford the mahram's expenses for Hajj — **not** the mahram's duty to pay for himself so she can go. If she cannot afford both, Hajj is **not Farz** on her.

Scenarios

Situation	Hajj Farz on her?	Can she go alone?
No mahram at all	No	No
Mahram exists but refuses to travel	No	No — she cannot force him
Mahram ready but she cannot pay his costs	No	No
Mahram ready, she can pay both	Yes	Yes — with mahram
She has money; tries to go alone without mahram	No (not Farz)	No — not allowed

She does not have to:

- **Force** the mahram to travel.
- **Borrow money** or put herself in hardship to arrange the mahram's costs — if money is not there easily, Hajj is not Farz.
- **Get married** just to obtain a mahram for Hajj.

Analogy — poor man: A poor man is not told to borrow and suffer to create Zad and Rahila. Likewise, a woman is not told to borrow to create the mahram's expenses.

Principle: If an 'ibadah is tied to a **condition**, you perform it when the condition exists — you are **not** obliged to **create** the condition by hardship. When the condition is missing, **leave it** — Hajj is not Farz.

Optional: Some women collect money over years for Hajj by choice — that is **Nafl** / **optional** effort, not a Sharia command.

Two opinions — must she arrange mahram's costs if she is rich enough?

Opinion	Ruling
Preferred (Hanafi)	She needs enough for herself + mahram easily. No need to borrow or struggle.
Other opinion	Zad and Rahila are enough for her ; she must try to arrange mahram's costs herself.

Preferred view reasoning: Same as above — Sharia does not command **takalluf** (تكلف) [unnecessary burden] to manufacture a condition.

Part 2C — Husband's Permission

Journey type	Husband's permission (Hanafi)
Normal long travel	Required — she is generally under his permission for travel
Hajj / 'Umrah when Hajj is Farz and all conditions met	Not required — exception for 'ibadah (عبادة)
Nafl travel (e.g. optional 'Umrah for pleasure)	Husband may stop her — not the same as Farz Hajj

Hanafi proof by analogy: She does not need husband's permission for **obligatory Salah** or **Ramadan fast** when due — similarly, **Farz Hajj** when fully due is an exception.

Imam Shafi'i: She **still** needs husband's permission even for obligatory Hajj — because of **marital rights** (huquq al-zawj).

Class conclusion: Hanafi view accepted for **Farz Hajj** — no permission needed when Hajj is truly Wajib and all shurut are met.

Example: Brother is mahram, ready to go, she has money for both — Hajj is Farz; she may go **even if husband refuses** (Hanafi).

Part 2D — What Counts as Mahram?

Mahram = a man with whom **marriage is permanently impossible (haram forever)** — by blood, nursing, or permanent marriage relationship (e.g. father, son, brother, father-in-law, son-in-law).

Not sufficient:

- **Temporary mahram** — e.g. a relationship that only blocks marriage for a limited time; not valid for this travel rule.
- **Immature boy** — mahram by relation but too young to protect anyone.
- **Majnun** (مجنون) [insane person] — cannot handle a hard journey.
- **Majusi** (مجوسي) [fire-worshipper] non-Muslim mahram — in their religion incest may be permitted; not a safe companion in Sharia's view.
- **Kafir** (كافر) non-Muslim mahram who is **not** majusi — **some allowance** in discussion (e.g. Christian brother may travel if he protects honour); **except** the majusi case as taught.

Young girl: A **small girl** not yet at the age where fitnah is feared (class example: **before about nine years**) — **may** travel without mahram for long distance, because the reason for the rule does not apply to her yet. **After** that age, mahram is required for **Safar**.

Distance rule: Mahram is required for **Safar** $\approx$ **48 miles or more**. **Less than that** — e.g. woman living in **Makkah** going to the Haram — **no mahram condition** for that short trip (same idea as going to the masjid).

All schools agree (as taught): Even an **elderly woman** may **not** do long Hajj travel **without mahram** — hadith is ‘amm (عام) [general for all women], not limited by age.

Part 2E — Second Condition (Preview)

Not in Hayd or ‘Iddah — while in menstruation or ‘iddah, she is **not allowed** to travel for Hajj; therefore Hajj is **not Farz** during that time. When it ends, it may become Farz if other conditions exist. **Details: next class.**

Q&A from Class

Q1 — If I get wealth only shortly before Hajj (e.g. one month before Dhul Hijjah), when does Hajj become Farz?

Answer: Unlike **Zakat**, there is **no fixed “one year on wealth”** rule for Hajj. Hajj is tied to **Istita’at**, not a calendar year on money.

- Whenever you have enough to **arrange the journey** (reserve seat, provisions, family expenses, mahram’s costs if applicable, etc.), Hajj becomes **Wajib**.
- **No specific** “one month / one week before Hajj season” in Sharia — only capability matters.
- **Best practice:** Perform Hajj **as early as possible** once it becomes Farz — do not delay without reason.

Q2 — Hajj became Farz; then I lost the money and never got it again. Is Hajj still Farz?

Answer: **Yes** — it remains Farz on the person.

	Zakat	Hajj
Tied to	Wealth (mal)	The person
If wealth gone before paying	Obligation drops	Obligation does not drop
Reason	Zakat is on the money itself	Mal was only the trigger ; once Farz, it stays on him until done

He must perform Hajj when capability returns — **Hajj-e-Badal** rules apply if he dies while still owing it (if Hajj had truly become Farz earlier).

Q3 – Today women travel in groups for ‘Umrah/Hajj; visas are issued without mahram. How do we convey the Hanafi ruling?

Answer (as taught):

- Government visas and group travel **do not change** Allah’s ruling.
- If Sharia requires mahram and she goes without it, the journey is **not** the Shari‘ Hajj/‘Umrah Allah wants – even if rituals are done.
- **‘Ibadah** = what Allah commanded, not personal desire.
- **Hanafi and Shafi‘i** both have strict rules; Shafi‘i allows **some** group-of-women scenarios for obligation – **Hanafi does not** approve that for lifting the mahram requirement.
- Sensitivity of **women’s safety** in Sharia is **severe (shadid)** – do not treat it lightly because of modern custom.

Practical note for students: Teach with wisdom and clarity; rulings are from Sharia, not from visa policy.

Summary Table – When Is Hajj Farz on a Woman? (Hanafi)

Condition	Required?
Bulugh, ‘Aql, Islam, freedom (general shurut)	Yes
Zad + Rahila (own + family + debts cleared)	Yes
Amn al-Tariq	Yes
Mahram or husband available & willing	Yes
Her + mahram’s travel costs affordable	Yes
Not in hayd/‘iddah (for travel)	Yes
Husband’s permission (when Hajj is Farz)	No (Hanafi)

Closing

- Covered: **Amn al-Tariq** (preferred: condition for **obligation**), **mahram**, **costs**, **permission**, **types of mahram**, **distance**, **Q&A**.
- **Next class:** Second women’s condition – **hayd / ‘iddah**; same time as scheduled.

Schedule (as agreed in series):

- Monday & Wednesday → **9:30 PM**
 - Tuesday, Thursday & Friday → **7:15 PM**
-

Key Arabic Terms (Quick Reference)

Arabic	Meaning
استطاعة	Capability for Hajj
أمن الطريق	Safety of the road
محرم	Unmarriageable relative (for travel)
سفر	Long journey (~48+ miles)
نفقة	Maintenance / expenses
حج البديل	Hajj by proxy
وصية	Bequest
فتنة	Trial / moral temptation
تكلف	Burden / forcing hardship

Masail e Hajj — Class 5 Summary

DATE May 19, 2026

TOPIC Iddah travel restrictions, scenarios of talaq/wafat during Hajj journey, and Hajj Badal

TEACHER Mufti Umar Aejaaz

Introduction

This class continued the study of conditions specific to women that affect the obligation of Hajj. After covering the condition of **Mahram** in prior sessions, two further topics were addressed today:

1. The second women-specific condition: she must not be in a state of ‘**Iddah** (عِدَّة) [waiting period after divorce or the death of a husband].
2. Scenarios of what happens when talaq or the husband’s death occurs *during* the Hajj journey.
3. The ruling of **Hajj Badal** (حَجٌّ بَدَل) [Hajj performed on behalf of another] for those physically or otherwise unable to perform Hajj themselves.
4. The condition that financial capability must coincide with the *season* of Hajj for the obligation to become binding.

Second Condition Specific to Women: Absence of ‘Iddah

A woman in her ‘iddah period — whether due to divorce or the death of her husband — is **not permitted to leave her home**. This is based on the Quranic command:

لَا تُخْرِجُوهُنَّ مِنْ بُيُوتِهِنَّ وَلَا يَخْرُجْنَ

“Do not expel them from their homes, and they themselves should not leave.”

Ref: Surah al-Talaq (65:1)

Because she is restricted from traveling during the ‘iddah, Hajj does not become obligatory upon her during this period, even if all other conditions are met.

Evidence from the Companions: ‘Abdullah ibn ‘Umar and ‘Abdullah ibn Mas’ud (رضي الله عنهما) returned women who were in ‘iddah and had set out for Hajj.

Reasoning: The ‘iddah is time-bound and cannot be delayed. Hajj, by contrast, can be performed in any subsequent year. Therefore, the ‘iddah takes priority.

Scenarios: Talaq or Husband’s Death During the Hajj Journey

If a woman had already departed for Hajj and the talaq or death of her husband occurred *mid-journey*, the rulings vary by circumstances.

Talaq al-Raj'i (Revocable Divorce)

The Nikah relationship has not yet ended. The husband may accompany her and continue the journey. It is **preferred (mustahabb)** for the husband to revoke (raj'at) the talaq so she is more comfortable during travel. The journey continues for both.

Talaq al-Ba'in / Death of Husband (Relationship Ended)

The husband is no longer her Mahram and cannot continue traveling with her. She is now in 'iddah — either **'Iddah al-Talaq** or **'Iddah al-Wafat (عِدَّةُ الْوَفَاةِ)** [waiting period after the husband's death]. The following four cases determine what she must do:

Case 1: Her Home is Closer (Less than Mafat al-Safar)

Mafat al-Safar (مَسَافَةُ السَّفَرِ) [the distance that defines travel in Shari'ah] = approximately 48 miles.

If the distance back to her home is less than 48 miles, and Makkah is farther away, she **returns home**. Going back would not constitute a new journey (safar shar'i), so she fulfills her 'iddah there as intended.

Case 2: Makkah is Closer (Less than Mafat al-Safar)

If Makkah is now less than 48 miles away, and her home is farther, she **continues forward** to Makkah. The remaining distance does not constitute safar, so the Mahram requirement no longer applies. She performs Hajj and observes 'iddah there.

Case 3: Both Home and Makkah are Within 48 Miles

Neither direction constitutes a full safar shar'i. In this case, she has a **free choice** — she may go forward to perform Hajj or return home. Both are permissible.

Case 4: Both Home and Makkah are Farther than 48 Miles (The Debated Case)

This is the scenario of a traveler from a distant country (e.g., India) who is stranded in the middle of the journey — both her home and Makkah are more than 48 miles away.

The question: Should she stay, go forward, or go back?

This depends on whether the place where she currently is constitutes a safe and comfortable city (misr).

If she is in a safe, comfortable city (Misr):

Scholar	Ruling
Imam Abu Hanifa	She must remain in that city and complete her full 'iddah there, even if another Mahram joins her. That city is treated as her home for 'iddah purposes.
Sahibayn (Imam Abu Yusuf & Imam Muhammad)	If a Mahram joins her, she may continue traveling. Without a Mahram, she must stay regardless.

If she is in an unsafe or uncomfortable place (e.g., a small village):

She cannot remain there safely. In this case:

Scholar	Ruling
Imam Abu Hanifa	She must travel to the next safe city and remain there for her 'iddah.
Sahibayn	If joined by a Mahram, she may continue all the way and complete her 'iddah while traveling.

Core difference of opinion: Does the city where she finds herself become her legal domicile (home) for the purpose of 'iddah?

- **Imam Abu Hanifa:** Yes — she must remain and observe 'iddah there.
- **Sahibayn:** No — it is a foreign city; 'iddah continues to count while she travels.

Note on 'Iddah Commencement

The 'iddah begins **automatically** at the moment of talaq or at the moment of the husband's death. It does not need to be formally initiated. The counting continues uninterrupted, regardless of whether she is stationary or traveling.

Hajj Badal (حَجٌّ بَدَل) — Proxy Hajj

Definition and Obligation

A person who:

- Possesses sufficient wealth (mal) to send someone for Hajj, **and**
- Is unable to perform Hajj personally due to a physical disability, chronic illness, extreme old age, or an external barrier such as security conditions

...is **obligated** to send another person to perform Hajj on their behalf. This is called **Hajj Badal**.

This Hajj Badal is counted as their **Fard Hajj (first obligatory Hajj)**.

If the Person Performs Hajj Themselves Despite the Barrier

If such a person crosses their own barrier and personally performs Hajj (e.g., despite illness or disability), their Hajj is **valid and counted as Fard**. Shari'ah did not require them to cross that barrier, but having done so, their Hajj obligation is fulfilled.

Recovery After Hajj Badal

If the Hajj Badal has already been performed on their behalf, and the person later **recovers fully** and regains the physical capability:

- The Hajj Badal performed is now considered **nafl (supererogatory)**, not Fard.
- They are now **obligated to perform Hajj themselves**, provided they still have the financial means and meet all conditions.

Reasoning: Hajj Badal was permitted due to necessity. When the necessity is removed, the original obligation of performing Hajj personally is restored.

Analogy: The Poor Person Who Performs Hajj

A person who is financially incapable of Hajj but nonetheless manages to go and perform it — fulfilling all other conditions (sane, adult, free) — has performed their **Fard Hajj**. They need not repeat it. Although the financial condition was not met, they themselves crossed that barrier, so Shari’ah counts it.

Comparison with a Slave or Minor:

Person	Status	Hajj Counts as Fard?	
Poor person who manages to go	Subject of obligation, financial condition absent	Yes — barrier crossed	
Slave (abd)	Not a subject of the obligation	No — must repeat after freedom	
Minor (child)	Not a subject of the obligation	No — must repeat after maturity	

A slave or minor performing Hajj must repeat it once they become legally responsible (mukallaf). This is because they were never the *subject* (mahall) of the obligation in the first place — unlike the poor free adult, who is a subject of the obligation; the barrier was only the financial one.

Analogy with Jumu’ah: If a slave attends and performs Jumu’ah, it is counted as his Jumu’ah prayer and he does not need to make up Zuhr. Similarly, if a slave performs Hajj, the situation differs — because the foundational obligation of Hajj does not rest upon him as it does for a free person.

Financial Capability and the Hajj Season

Two Scenarios

Scenario 1 — Capability Acquired Outside the Hajj Season:

A person acquires sufficient mal, but the Hajj season is not currently open. In this case, he is **free to spend that money** as he wishes. Hajj does not become immediately obligatory. He may save it for Hajj or use it for other purposes.

Scenario 2 — Capability Acquired During the Hajj Season (or Carried Over Into It):

If a person has the mal and the Hajj season arrives — i.e., the time when people are preparing and departing for Hajj — then it becomes **obligatory upon him to use that mal for Hajj**. He is no longer free to spend it elsewhere on non-necessities.

Analogy with Wudu' and Water:

- If a person has water and it is not time for Salah, he may use it freely.
- If the time of Salah enters and he has water, it becomes obligatory to use it for wudu'. He may not divert it for other non-essential uses.

Immediate (Fawri) vs. Delayed (Tawsi') Obligation

There is a scholarly difference of opinion on whether the obligation of Hajj must be fulfilled **immediately** (in the very first year of capability) or whether it allows **delay (tawsi')**.

View	Position
Immediate (Fawri):	Hajj must be performed the first available year; spending the mal elsewhere is impermissible.
Delayed (Tawsi') — Preferred (Mufta Bihi) Opinion:	Hajj may be deferred; the mal may be spent elsewhere. However, the <i>obligation</i> of Hajj remains binding. If the person loses capability later, the wujub (obligation) is not dropped — it remains due upon him. He will be sinful if he dies without having performed it.

Key principle: The Wujub of Hajj **does not drop** due to subsequent loss of wealth. If Hajj became obligatory in the season of capability, it remains obligatory even if the mal is later spent or lost.

Q&A from Students

Q: Many people — especially in India and Pakistan — delay Hajj because they say they need the money to marry off their daughters or meet other family responsibilities. Is there any Shari'i basis for this delay?

A (Teacher): The expenses of a daughter's marriage are not Shari'i necessities — they are customs and cultural obligations that people make binding upon themselves. Shari'ah has not mandated extravagant marriage expenditures. Therefore, Hajj **cannot be delayed** on this basis. Per the preferred opinion (tawsi'), the person will not be deemed sinful for delaying due to such reasons — but the obligation of Hajj **remains binding** on him. If he dies without performing it, he will be considered sinful in the sight of Allah. The better course is to perform Hajj as early as possible.

Closing / Next Class

Next topic: The **Arkan** (أركان) [pillars/integrals] of Hajj — specifically:

1. The **Fard** (obligatory) components
2. The **Wajib** (necessary) components

These will be covered with full details in the next class, insha'Allah.

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End of edition · Further sessions forthcoming
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